

Andhra Pradesh Excise (Grant of License of Selling by Bar and Conditions of License) Rules, 2017

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State of Andhra Pradesh - Act

Andhra Pradesh Excise (Grant of License of Selling by Bar and Conditions of License) Rules, 2017

ANDHRA PRADESH

India

Andhra Pradesh Excise (Grant of License of Selling by Bar and Conditions of License) Rules, 2017

Rule

ANDHRA-PRADESH-EXCISE-GRANT-OF-LICENSE-OF-SELLING-BY-BAR-AND-CONDITIONS-OF-LICENSE-RULES-2017 of 2017

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Andhra Pradesh Excise (Grant of License of Selling by Bar and Conditions of License) Rules, 2017

Published vide Notification No. G.O.MS. No. 235, dated 23.6.2017

Last Updated 11th December, 2019

No. G.O.MS. No. 235. - In exercise of the powers conferred by Section 72 read with Sections 17, 28 and 29 of the Andhra Pradesh Excise Act, 1968 (Act

17 of 1968

), and in supersession of all the earlier Rules and orders issued on the subject, the Governor of Andhra Pradesh hereby

makes the following Rules:

1.

Short title, extent and commencement.

(1)

These rules may be called the Andhra Pradesh Excise (Grant of License of selling by Bar and conditions of licence) Rules, 2017.

(2)

They shall extend to all the areas where the Andhra Pradesh Excise Act, 1968 is in force.

(3)

They shall come into force at once.

2.

Application.

- These rules shall apply for the grant of licence by bar, conditions governing thereof and transport of Indian Made Foreign Liquor and Foreign Liquor by such licensees.

3.

Definitions.

(1)

In these rules unless the context otherwise requires:-

(a)

"Act" means the Andhra Pradesh Excise Act, 1968,

(b)

"Basic Price" per case of Indian Made Foreign Liquor manufactured within the State includes cost price, cost of holographic Excise adhesive label, freight, handling charges, insurance and in respect of Indian Made Foreign Liquor manufactured outside the State, it also includes Central Sales Tax, Export fee and import fee.

(c)

"Bar" means the privilege granted under these Rules to an establishment where food is served, for sale of Indian Made Foreign Liquor and Foreign Liquor, in loose or in sealed bottles for consumption on the licensed premises.

(d)

"Beach Shack" means a semi-permanent structure located along the beach and licensed by the local authority to serve food.

(e)

"Beer" includes ale, stout, porter and all other fermented liquors usually made from malt.

(f)

"Case" of Indian Made Foreign Liquor other than Beer, Wine and Ready to Drink varieties means 9 numbers of 1000 ml, 12 numbers of 750 ml, 24 numbers of 375 ml, 48 numbers of 180 ml, 96 numbers of 90 ml or 150 numbers of 60 ml glass/PET bottles/Aseptic Brick Pack or any other pack as approved by the Commissioner of Prohibition. & Excise.

(g)

"Dry day" means a day on which no liquor shall be served in the licensed premises;

(h)

"Holographic Excise Adhesive Label" means the label designed and approved by, printed and supplied by under the supervision and control of the Commissioner of Prohibition and Excise, from time to time in different forms for the purpose of its affixture to sealed bottles of different varieties and sizes containing liquor.

(i)

"Foreign liquor" includes every liquor imported into India other than Indian Made Foreign Liquor,

(j)

"Form" means a form appended to these rules,

(k)

"High Way" means National Highway or State Highway as notified by the competent authority.

(l)

"Indian Made Foreign Liquor" means liquor produced, manufactured or compounded in India after the manner of Gin, Brandy, Whisky or Rum imported from Foreign Countries and includes, Wine, Beer, Milk punch and other liquors

consisting of or containing any such spirits but does not include Foreign liquor".

(m)

'Licence' means licence granted under these rules;

(n)

'Licensee' means holder of such licence;

(o)

"License Fee" means the annual license fee with an enhancement of 10% annually and includes proportionate license fee.

(p)

"Licence period" means a period of 60 months beginning from the 1st July of the first year and ending with 30th June of the fifth year or part thereof.

(q)

"Population" means the figure of population as officially published in the latest census.

(r)

"Proportionate License Fee or proportionate non-refundable registration charge" for the purpose of collection of license fee and non-refundable registration charge means the License fee or the non-refundable registration charge calculated proportionately to one quarter of the License period.

Provided that a part of quarter shall be reckoned as a whole quarter.

(s)

Ready to Drink alcoholic beverage means any low alcoholic beverage made from spirit or any alcoholic beverage as base with admixture of natural juices and / or artificial flavors, spices, coloring agents and sugar containing added alcohol of not more than 8% V/v, usually carbonated.

(t)

"Registration Charge" means the non-refundable registration charge fixed per annum with an enhancement of 10% annually and includes proportionate non-refundable registration charge.

(u)

"Transport Permit" means a permit issued by the competent officer for transport of Indian Made Foreign Liquor & Foreign Liquor from the Government / Andhra Pradesh Beverages Corporation Ltd. / Andhra Pradesh State Beverages Corporation Ltd. depot to the licensed premises.

(v)

Wine means the fermented juice of grapes or other fruits with or without the addition of sugar or jaggery, the fermentation being produced by the yeast naturally present on the skin of fruit or added externally and having alcoholic strength not exceeding 42% v/v by proof spirit and includes Fortified Wines, Red Wines, Sparkling Wines and Sweet Wines.

(2)

The words and expressions used but not defined in these rules shall have the meanings assigned to them in the Andhra Pradesh Excise Act, 1968 and Andhra Pradesh Excise (Import, Export and Transport of Indian Made Foreign Liquor and Foreign Liquor - Permits) Rules, 2005.

4.

Licenses.

- (i) License in Form-2B may be granted to an establishment licensed by the local authority to serve food such as a Hotel or a Restaurant, for the sale of Indian Made Foreign Liquor and Foreign Liquor in glasses, pegs or in sealed bottles for consumption within the licensed premises but not for removing it out of the licensed premises. Such licence may be granted to the establishments functioning in Nagar Panchayats, Municipalities and within a belt area of 2kms from the periphery of such Municipalities and Municipal corporations and within a belt area of 5kms from the periphery of such Municipal Corporations and in Tourism Centers (except places of religious tourism) as notified by the Department of Tourism of the Central Government or by the State Government in the Tourism policy and in the tourism resorts registered with the Tourism Department in order to promote tourism in the State and Micro Brewery license holders.

(ii)

Licence in Form-2B(P), may be granted to an establishment licensed by the local authority to serve food such as a Hotel or a Restaurant for the sale of Beer, Wine and Ready to Drink alcoholic beverages in glasses or pegs or in sealed

bottles for consumption within the licensed premises but not for removing it out of the licensed premises. Such licence may be granted to the establishments functioning in Municipal Corporations and Tourism centers (except places of religious tourism) as notified by the Department of Tourism of the Central Government or by the State Government in the Tourism Policy in Beach Shacks recognized by the APTDC and in Tourism resorts registered with the Tourism Department to promote tourism in the State.

5.

Licensing authority.

- The Commissioner of Prohibition and Excise shall be competent to grant prior clearance and the Deputy Commissioner shall be competent to grant the privilege of Bar. The Prohibition and Excise Superintendent shall issue the License in the prescribed Form.

6.

Existing licences granted under the Andhra Pradesh Excise (Grant of Licence of selling by Bar and Beer and Wine parlors and conditions of licence) Rules, 2005.

- The Andhra Pradesh Excise (Grant of Licence of selling by Bar and Beer and Wine parlors and conditions of licence) Rules, 2005 shall cease to operate on the commencement of these Rules and all the licensees who have been granted licenses under the Andhra Pradesh Excise (Grant of Licence of selling by Bar and Beer and Wine parlors and conditions of licence) Rules, 2005, and continued till the commencement of these Rules shall be entitled for grant of licenses under these Rules subject to payment of non-refundable application fee, non-refundable registration charge and license fee as prescribed and fulfillment of other conditions laid down under these Rules.

7.

Establishment of bars.

- Subject to such directions as may be issued by the Government from time to time, new bar licenses may be granted in Urban Local Bodies where there are either no bars or inadequate number of bars by following a population criteria of one bar upto 30,000 population and in its multiples.

Provided that grant of licenses in Form-2B for star hotels (3-star & above), Micro Breweries and tourism centers (except religious tourism) as notified by the Department of Tourism of the Central Government or by the State Government in the Tourism policy and in the tourism resorts registered with the Tourism Department shall be on filing prescribed applications and subject to fulfillment of eligibility conditions, irrespective of population of the place.

Provided further that all the existing licensees who are entitled for grant of licenses under Rule 6 shall file application online in Form-E1 for enrollment duly paying the non-refundable application fee, non-refundable registration charge and license fee as prescribed under these Rules and submit application form in Form-1B along with Form-BR1(system generated) on or before the last date and time notified by the license issuing authority for registration and grant of license.

Provided also that in case the existing licensee who is entitled for grant of license under Rule 6 fails to apply on or before the last date and time notified or a bar licence other than that of star hotel (3- Star and above), Micro Brewery or Tourism Center is cancelled, such bar may be notified duly calling for applications for grant of fresh license.

8.

Procedure for selection of applicants for grant of license in Form-2B.

(1)

Where it is proposed to grant license to sell Indian Made Foreign Liquor & Foreign Liquor by bar in Form-2B, the license issuing authority may call for applications for grant of licenses in the Nagar Panchayats, Municipalities including the belt areas of 2 KM from the periphery of such Municipalities and Municipal Corporations including the belt area of 5 KM from the periphery of such Municipal Corporations, as approved by the Commissioner of Prohibition & Excise by issuing a notification in the district gazette at least 5 days in advance of the date of selection containing the following particulars, namely: -

(a)

Serial number and name of the Nagar Panchayat / Municipality / Municipal Corporation in which the bar will be established.

(b)

The place of selection with time and date.

(c)

The Last date, time and place for receipt of applications.

(d)

The period of license, non-refundable application fee, nonrefundable registration charge and license fee.

(e)

Procedure of online enrolment by the applicant(s) for registration.

(f)

Any other relevant matter.

(2)

Submission of applications for enrolment for registration and selection for grant of license:-

(a)

(i)

The applicant shall enroll through online for registration with the license issuing authority by filling application in Form-E1 for participating in the selection process of Bar.

(ii)

After enrolment as laid down in the sub-Rule 2(a)(i), the applicant shall obtain Form-1B, and Entry Pass in Form-EB1, both system-generated, for each bar separately for onward submission to the license issuing authority as laid down under these Rules.

(b)

The application in Form-1B shall be submitted by the applicant for each bar separately in an envelope addressed to the license issuing authority on or before the last date and time notified for receipt of such applications along with the following:

(i)

A Challan for Rs.2,00,000/- towards non-refundable application fee.

(ii)

Two recent passport size photographs.

(iii)

Self attested Photostat copies of PAN Card & Aadhar Card

(iv)

Two years Income Tax/VAT returns.

(v)

Demand Draft for an amount of Rs.3,00,000/- (Rupees Three lakhs only) towards earnest money deposit drawn in favour of the License issuing Authority to be adjusted against the licence fee/non-refundable registration charge payable if Bar licence is granted on selection of the applicant or returned if the same is not granted or refused due to any reason.

(vi)

Copy of plan of the proposed premises.

(vii)

If the proposed premises is rented, copy of consent letter of the owner for establishment of bar.

(viii)

A copy of Trade License containing the details of hotel/restaurant etc., licensed by the competent local authority to serve food.

(3)

Applications not accompanied by the relevant documents/ enclosures specified in sub-rule (2) shall be forthwith rejected by the license issuing authority with the approval of the District Collector.

(4)

Every application shall be taken into consideration if it is presented on or before the prescribed date and time and no application shall be received after the prescribed date and time notified by the license issuing authority.

(5)

Entry Pass in Form-EB1 shall be issued to the applicant if the application is accepted by the license issuing authority and no person other than the officers on duty and persons duly authorized by the selection authority shall enter the place of selection without presenting Entry Pass.

(6)

The selection process shall be taken up at the place, time and date notified in the presence of the applicants who are available at the time of selection.

Provided that if the District Collector considers that the selection process should be postponed to a future date/time or shifted to a different venue for any reason, he may do so by recording the reasons there for and after notifying the same to the applicants.

(7)

The selection process shall be taken up bar-wise as notified in the District Gazette.

Provided that the Commissioner of Prohibition & Excise may for reason(s) to be recorded in writing, withdraw any bar from the selection process before the same is commenced.

(8)

At the commencement of the selection process, the selection authority shall first announce the number and names of applicants who have filed applications for that particular bar.

(9)

Where there is only one application for the bar notified, if the license issuing authority is satisfied that the applicant is eligible for grant of license, he shall declare the applicant as selected for grant of license.

(10)

(a)

Where there are two or more applications for a bar notified, the selection among the eligible applicants for grant of license shall be by drawl of LOT by the District Collector, who shall be the selection authority to conduct the process of selection of applicants for grant of license.

(b)

The drawl of LOT as provided in sub-Rule (a) may be either manual or through a computer as may be decided by the Commissioner of Prohibition. & Excise.

(11)

The selected applicant shall follow the procedure prescribed under these Rules to obtain the license.

(12)

In case the selected applicant fails to obtain the license within (45) days of such selection, the earnest money deposit submitted along with the application in the form of demand draft shall stand forfeited to the Government.

9.

Application and procedure for grant of Licence.

(1)

A person intending to establish Bar in Form-2B in star hotel (3- star and above), tourism center (other than religious tourism place) and Micro Brewery or in Form-2B(P), as the case may be, may submit an application in Form-1A to the Commissioner of Prohibition and Excise enclosing a challan of Rs.2,00,000/- towards non-refundable application fee to get prior clearance.

(2)

The Commissioner having due regard to requirement and other factors as he deems fit and subject to the directions of the Government as may be issued from time to time in this regard, may grant prior clearance in Form-2A to such of the applicants covered under sub-rule (1).

Provided that it shall not be necessary for the existing licensee who is entitled for grant of license under Rule 6 and the applicant selected for grant of license in Form-2B under Rule 8 to obtain prior clearance in Form-2A.

Provided further that the existing licensee who is entitled for grant of license under Rule 6 shall remit Rs. 2,00,000/- towards non-refundable application fee and enclose the challan to the application form in Form-1B.

Provided also that the selection or grant of prior clearance shall not confer any right on the applicant for grant of licence.

The holder shall not claim for any compensation or loss in case the licence is not granted.

(3)

(a)

The holder of prior clearance, the existing licensee who is entitled for grant of license under Rule 6 or the applicant selected for grant of license under Rule 8, as the case may be, may apply in Form-1B for grant of licence in the prescribed form to the Prohibition and Excise Superintendent concerned where the applicant's premises is to be licensed.

(b)

No application in Form-1B shall be submitted by the applicant unless he registers with the Prohibition & Excise Superintendent concerned and obtains Registration Certificate in Form-BR1.

(4)

Registration Certificate in Form-BR1 shall be issued to the applicant on payment of non-refundable registration charge prescribed under Rule 14.

(5)

The Prohibition and Excise Superintendent, after making such enquiry as he may think necessary, to ascertain the bona fides of the applicant and verifying the particulars furnished in the application should examine the suitability of the premises for granting Bar and forward the same to the Deputy Commissioner of Prohibition and Excise along with his report.

(6)

The Deputy Commissioner, after causing such enquiry as he may deem fit, may grant the licence.

(7)

The applicant before issue of licence shall execute a counterpart agreement in Form-4B, on the stamp paper of requisite value as per the provisions of the Indian Stamp Act, 1899.

10.

Persons not eligible for grant of licence.

- The following persons are not eligible for grant of licences:-

(i)

persons below the age of twenty one years,

(ii)

persons who are undischarged insolvents or who have been convicted of offences under the provisions of the Act or the Customs Act, 1962 or Narcotics Drugs and Psychotropic Substances Act, 1985 (Central Act 61 of 1985) or convicted under Andhra Pradesh intoxicating liquors (Prohibition of Advertisements) Act, 1978 or convicted of non-bailable offences or are habitual offenders.

(iii)

Persons suffering from leprosy or other contagious disease only in cases where such persons have to handle the stocks of liquor or beer in premises or elsewhere personally,

(iv)

Defaulters in the payment of excise revenue to the Government.

11.

Restrictions on the grant of Licence.

(1)

A licence in Form-2B or 2B(P) shall not be granted.

(i)

Unless the premises has: -

(a)

A minimum plinth area of 200 Sq. Meters.

Provided that the minimum plinth area for Beach Shack shall be 100 Sq. Mts.

(b)

Sanitary equipment like wash basins, washrooms separately for ladies and gents.

(c)

Facility of cooking and serving complete meals of good quality to the consumers as licensed by local authority by providing a kitchen with a minimum plinth area of 15 Sq.Mtrs.

(d)

Air conditioning or Air cooling facility in consumption rooms and halls of licensed premises.

(e)

Adequate vehicle parking arrangement.

(ii)

Unless the premises is situated within 100 meters from educational institutions recognized by the Government, places of

public worship such as Temples registered with the Endowments Department, Mosques registered with the Wakf Board, Churches, established and managed by a registered Christian organization or society and Hospitals.

(iii)

Within 500 meters of predominantly residential area, but licenses may be granted if the proposed premises is located on a main road used for shopping purposes.

Provided that the restrictions in clauses (i) to (iii) shall not be applicable to Star Hotels (3 Star and above) certified by the Tourism Department of the Central Government.

(iv)

Within a distance of 500 Mts. of the outer edge of the national or state highway or of a service lane along the highway and the premises shall not be either visible or directly accessible from a national or state highway.

Provided that in case of areas comprised in local bodies with a population of 20,000 or less, the distance shall be 220 Mts.

(v)

Unless the applicant produces Trade License from the local authority concerned and relevant License under the Food Safety and Standards Act-2006 issued by competent authority.

(vi)

Unless the applicant produces lease deed on a Stamp paper for the proposed licensed premises from the owner of the premises.

Explanation. - For the purpose of this rule -

"Place of public worship" means a temple registered with the Endowment Department, Mosque registered with Wakf Board and Church "established and managed by a registered Christian organization / society" and includes such other religious institutions, as the State Government may by order specify in this behalf;

(a)

"Educational Institutions" means any Primary school, Middle School and High School recognized by the State Government or Central Government, Junior College or any College affiliated to any University established by law:

(b)

"High Way" means National Highway or State Highway as notified by the competent authority.

(c)

"Hospital" means any hospital which is managed or owned by a local authority, State Government or Central Government or any private hospital and has a provision of more than thirty (30) beds.

The distances referred to above shall be measured from the midpoint of the entrance of the proposed Bar premises along with the nearest path by which pedestrian ordinarily reaches the outer edge of the national / state highway or service lane, mid-point of the nearest gate of the hospital, institution or place of public worship, if there is a compound wall and if there is no compound wall to the mid-point of the nearest entrance of the Institution/ place of public worship, or the entrance of the first house of the predominantly residential area.

12.

Failure to comply with directions entails rejection of application.

- Failure to remit fees or to rectify the defects or to comply with other directions relating to the premises, within the time allowed shall entail rejection of an application.

13.

Period of the Licence and commencement of business.

- Every license shall be valid for five years commencing from 1st July of the first year ending with 30th June of the fifth year, subject to payment of licence fee and non-refundable registration charge as prescribed.

Provided that the licence issued on or after the 1st July shall be valid up to the 30th June of the fifth year.

Provided further that a licence granted for a part of the licence period shall be valid for such period as may be specified by the licensing authority.

Provided also that every licensee shall commence his business from 1st July, or such other date as may be specified in the licence and shall keep the Bar open every day during the hours fixed till the expiry of the licence period with sufficient stock of Indian Made Foreign Liquor & Foreign Liquor unless the closure of the Bar is ordered by the competent authority for the period specified.

Before issue of a licence, the licensee shall execute a counterpart agreement in Form-4B on the stamp paper of

requisite value as per the provisions of the Indian Stamp Act, 1899.

14.

Non-refundable registration charge and License Fee.

(1)

The mode of levying non-refundable registration charge and license fee shall be on the basis of population.

(2)

The annual non-refundable registration charge and license fee for each of the licenses shall be as follows :

Sl. No.

Population

Non-refundable registration charge slab in Rs.

License fee slab in Rs.

1

Upto 50,000

8,00,000

2,00,000

2

50,001 to 5,00,000

18,00,000

2,00,000

3

5,00,001 and above

28,00,000

2,00,000

Provided that the annual non-refundable registration charge and the license fee for each of the licenses shall be enhanced @10% every year.

Provided further that the annual non-refundable registration charge and the license fee of a bar situated in the 5 KM belt from the periphery of a Municipal Corporation and in the 2 KM belt from the periphery of a Municipality, measured in a straight line on the horizontal plane, shall be at the rates of annual non-refundable registration charge and the license fee of bar situated within the limits of such Municipal Corporation and Municipality respectively.

Provided also that where the bar falls within the belt area of a Municipal Corporation as well as a Municipality, the non-refundable registration charge and license fee payable shall be the non-refundable registration charge and license fee applicable to the Bar situated in the belt area of the Municipal Corporation.

(3)

The applicant shall pay the non-refundable registration charge and license fee for the five years' license period before commencement of the license period either in one lump sum or in five equal installments at his option.

(4)

(a)

Where the applicant opts to pay the non-refundable registration charge and license fee in installments, he/she shall pay a sum equal to the annual non-refundable registration charge and license fee before the commencement of the license period.

(b)

The licensee shall remit the 2nd installment sum equal to the annual non-refundable registration charge and license fee on or before 20th June of the first year of the license period.

(c)

The licensee shall remit the 3rd installment sum equal to the annual non-refundable registration charge and license fee on or before 20th June of the second year of the license period.

(d)

The licensee shall remit the 4th installment sum equal to the annual non-refundable registration charge and license fee on or before 20th June of the third year of the license period.

(e)

The licensee shall remit the 5th installment sum equal to the annual non-refundable registration charge and license fee

on or before 20th June of the fourth year of the license period.

(5)

The annual non-refundable registration charge and licence fee in respect of licenses granted during the currency of the licence period shall be on the following scales:-

(I)

Licence granted between 1st July and 30th September: Full annual non-refundable registration charge and licence fee for each of the five years.

(II)

Licence granted between 1st October and 31st December: 3/4 of the annual non-refundable registration charge and 3/4 of the annual licence fee for the first year and full annual non-refundable registration charge and license fee for each of the remaining four years.

(III)

Licence granted between 1st January and 31st March: 1/2 of the annual non-refundable registration charge and 1/2 of the annual licence fee for the first year and full annual nonrefundable registration charge and license fee for each of the remaining four years.

(IV)

Licence granted between 1st April and 30th June: 1/4 of the annual non-refundable registration charge and 1/4 of the annual licence fee for the first year and full annual non - refundable registration charge and license fee for each of the four years.

Provided that if the license is granted after 1st July, the non-refundable registration charge and license fee as applicable for the first year shall be remitted before the issue of the license and the 2nd, 3rd, 4th, and 5th installments of nonrefundable registration charge and license fee shall be remitted as laid down under sub-rule (4) (b) (c) (d) and (e).

(6)

In the event of failure to remit the non-refundable registration charge and license fee installment on or before the due date, the licence shall stand cancelled automatically and all the deposits shall stand forfeited to the Government.

(7)

If a licence is surrendered in the middle of the licence period, the deposits and the non-refundable registration charge and licence fee paid shall be forfeited to the Government.

(8)

In case the licence is refused, the license fee and registration charge paid shall be refunded.

(9)

The non-refundable registration charge and license fee shall be remitted into the concerned Government Treasury in the District in which the licensed premises is located.

(10)

Where the licence stands cancelled or suspended for any violation of the rules and the conditions of licence, the Deputy Commissioner may order forfeiture of the deposit furnished by the licensee either in full or in part depending upon the nature of violation and such forfeited deposit shall be made good by the licensee within the time fixed by the Deputy Commissioner. In case the licensee fails to make good to the extent of forfeited deposit within the time fixed the licence automatically stands cancelled.

15.

Renewal of License.

- The licensee is eligible for renewal of his license subject to payment of non-refundable application fee, non-refundable registration charge and license fee as may be fixed and subject to fulfillment of other conditions, if there are no cases pending against the licensee for violation / contravention of license conditions or Rules.

16.

Transport permit.

- The transport permit may be issued authorizing movement of Indian Made Foreign Liquor and Foreign Liquor within the State from the units of the Government / Andhra Pradesh Beverages Corporation Ltd./ Andhra Pradesh State Beverages Corporation Ltd., to the licensed premises. Such transport shall be governed by Andhra Pradesh Excise (import, export and transport of Indian Made Foreign Liquor and Foreign Liquor - permits) Rules, 2005.

17.

Sale permitted at the licensed premises only.

(1)

The licensee shall sell the liquor only at the premises specified in the licence.

(2)

No change or alteration of the licensed premises shall be made during the licence period without the prior approval of the Deputy Commissioner of Prohibition and Excise.

"Provided that such change or alteration may be permitted for valid reasons by the Deputy Commissioner subject to payment of an alteration fee of Rs. 1,00,000/-"

(3)

No shifting of the licensed premises shall ordinarily be permitted during the licence period from one location to another. However, shifting of the licensed premises may be considered by the Commissioner of Prohibition & Excise for valid reasons within the same Nagar Panchayat, Municipality including its 2KM belt area from the periphery or Municipal Corporation including its 5KM belt area from the periphery, as the case may be, subject to payment of 1% of the nonrefundable registration charge and license fee or Rs.25,000/-, whichever is higher, as shifting fee and on production of trade license granted by the local authority concerned.

18.

License and plan of the licensed premises to be exhibited.

- The proforma licence shall be exhibited in a conspicuous place in the licensed premises. The Licensee shall also exhibit the approved drawings / plan of the licensed premises for verification by the Inspecting authorities.

19.

Hours of Business.

- The Licensee shall transact business from 10.00 AM to 11.00 PM.

However, the restaurant may supply food till 12.00 Midnight or as notified by the Government from time to time.

Provided that the Licensee in respect of (3) Star and above Hotels shall transact business from 10.00 AM to 12.00 Midnight.

Provided also that the Commissioner of Prohibition & Excise with the approval of the Government may bring about any change during the course of licence period in the hours of business and the licensee shall observe such changed timings accordingly.

20.

Dry Days.

- The Licensed premises shall be closed and no business transacted on the following days declared as dry days:-

(i)

26th January - Republic day

(ii)

15th August - Independence day

(iii)

2nd October - Gandhi Jayanthi.

Provided that the licensee shall not be entitled to any compensation whatsoever for the closure of the licensed premises.

21.

Licensee not to transfer the licence without authority.

(1)

No licensee shall except with the sanction of the Commissioner of Prohibition and Excise transfer his licence to any other person. The Commissioner of Prohibition and Excise may allow such transfer of licence on payment of the prescribed fee and on production of a certificate to the effect that no cases involving contravention of Excise Act and Rules framed there under are pending against him and also on production of Sales Tax and Income Tax clearance certificates.

(2)

The fee payable by any licensee for the privilege of having the transfer of his licence to any other person shall be 10% of the nonrefundable registration charge and license fee.

(3)

Mere change in the name by keeping the entity intact does not amount to transfer of licence. In such cases the

Commissioner may allow change in the trade name subject to payment of fee of Rupees five thousand only and on production of certificates referred to in sub-rule (1) above.

(4)

When there are only two partners in the firm holding the licence and one of them withdraws or expires, the entity of the firm is changed from partnership to proprietary. It amounts to transfer of licence,

(5)

Conversion of proprietary concern into a firm or a company or a firm into a company and vice versa shall amount to transfer of licence.

22.

Licensee not to declare any person to be or not to be his partner.

- No licensee shall, except with the prior permission of the Commissioner of Prohibition and Excise get any other person included as partner to his business, or get an existing partner excluded so long as the partnership nature of the business does not change.

"Provided that the Commissioner of Prohibition and Excise may, after such enquiry as he deem fit, permit the licensee at his request, to get any person(s) included as partner(s) or exclude any existing partner(s), so long as the partnership nature of the business does not change, on payment of a fee of 5% of the non-refundable registration charge and license fee".

Provided further that where there was dissolution of partnership it shall be notified to the Commissioner of Prohibition and Excise.

23.

On death of a licensee.

- A licence issued under these rules shall be only to the person named therein and on his death the heir or legal representative may apply for continuance of the licence for the leftover licence period in his name to the Commissioner of Prohibition and excise within thirty days of the death of the licensee. The Commissioner of Prohibition and Excise may, at his discretion, continue the licence in the name of the heir or legal representative of the deceased licensee, subject to fulfillment of eligibility conditions.

24.

Licensee not to stock unauthorized Indian Made Foreign Liquor and Foreign Liquor.

- The Licensee shall not stock or sell in the licensed premises Indian Made Foreign Liquor and Foreign Liquor except those stocks purchased from the wholesale depot of Government / Andhra Pradesh Beverages Corporation Ltd. / Andhra Pradesh State Beverages Corporation Ltd. of any kind which he is not authorized to buy, stock or sell under the provisions of Act or Rules, Regulations or Orders made thereunder.

25.

The licensee not to stock Indian Made Foreign Liquor or Foreign Liquor at unauthorized place.

- The licensee shall not stock Indian Made Foreign Liquor and Foreign Liquor in any place other than the licensed premises. The licensee shall be held responsible for any Indian Made Foreign Liquor and Foreign Liquor unauthorizedly kept outside or nearby the licensed premises.

26.

Licensee to sell Indian Made Foreign Liquor and Foreign Liquor of specified Strength.

- The Commissioner may, authorize the sale of any special brands of Indian Made Foreign liquor of weaker strength in a particular area, in a particular category of liquor, if he is satisfied with the wholesomeness or purity of such liquor.

27.

Indian Made Foreign Liquor or Foreign Liquor not to be adulterated.

- The Indian Made Foreign Liquor and Foreign Liquor offered for sale or stored in the licensed premises shall not be of substandard, deteriorated, spurious or adulterated and the licensee shall not tamper with the Indian Made Foreign Liquor and Foreign Liquor in any manner so as to alter their quality, strength, nature or quantity.

28.

Adulterated Indian Made Foreign Liquor or Foreign Liquor to be seized.

- It shall be competent for the inspecting officer, on finding any Indian Made Foreign Liquor and Foreign Liquor unfit for use, substandard, adulterated or spurious or in respect of which it is believed that some substance has been admixed so as to make it unfit for consumption by any process or manner, to stop it from being sold and to seize the same forthwith

and take necessary further action as per the provisions of the Act.

29.

Indian Made Foreign Liquor and Foreign Liquor shall not be given or sold to certain persons.

- No Indian Made Foreign liquor or Foreign Liquor shall be sold or given to the following persons namely:-

(i)

Lunatics;

(ii)

Persons known or believed to be in a state of drunkenness;

(iii)

Persons about whom it is known or suspected that they are likely to participate in the commission of sedition, insurrection, breach of peace or any other similar offence threatening public peace and tranquility;

(iv)

Employees of the Police, Prohibition & Excise and Railway Departments or Chauffeurs of motor vehicles while engaged in discharging their duties;

(v)

Soldiers in uniform and the camp servants of military officers in their uniform;

(vi)

Persons below (21) years of age.

30.

Restrictions on the sale of liquor to the customers.

- The licensee shall sell Indian Made Foreign Liquor and Foreign Liquor, Beer, Wine or Ready to Drink varieties, as the case may be, to the customers in sealed bottles, glasses or pegs for consumption within the licensed premises only but not for removing it out of the licensed premises.

31.

Bottles for sale to carry labels.

- Every bottle of Indian Made Foreign liquor or Foreign Liquor in a Bar shall carry Holographic Excise Adhesive label on the cap of the bottle in addition to the manufacturer's label as approved by the Commissioner of Prohibition and Excise.

32.

Sale of only duty paid Indian Made Foreign Liquor or Foreign Liquor.

(1)

The licensee shall sell only duty paid Indian Made Foreign Liquor and Foreign liquor

(2)

The Licensee shall purchase Indian Made Foreign Liquor and Foreign liquor from the allotted depot of the Government/ Andhra Pradesh Beverages Corporation Ltd/ Andhra Pradesh State Beverages Corporation Ltd only on such terms as may be prescribed. However, the Commissioner of Prohibition. & Excise may permit the licensee to purchase the requirement of Indian Made Foreign Liquor and Foreign Liquor from any other Depot of the Government/ Andhra Pradesh Beverages Corporation Ltd/ Andhra Pradesh State Beverages Corporation Ltd.

33.

Standard measures to be kept.

- The licensee shall use only standard measures, as may be prescribed by the Commissioner of Prohibition and Excise from time to time. The measures should be got duly stamped by the Department of Legal Metrology.

34.

Certain acts Prohibited in the licensed premises.

- Notwithstanding any permit/ licence granted by any authority, Gambling, dancing, any other acts of disorderliness or obscenity within the licensed premises shall be strictly Prohibited.

35.

Harbouring of certain persons Prohibited.

- Persons, who are known or believed to have been convicted of any non-bailable offences, who are prostitutes and habitual offenders, shall not be employed nor shall they be allowed to assemble or remain in the licensed premises, and if such persons visit licensed premises the matter shall be forthwith reported to the nearest Police Station by the licensee.

36.

Provision for a night watchman.

- No person other than a watchman shall be allowed to stay in the licensed premises during night time beyond the hours specified for closure of business.

37.

Employment of servants.

(1)

No women shall be employed for sale of Indian Made Foreign Liquor and Foreign liquor without the special permission of the Commissioner of Prohibition and Excise. No male person shall be appointed for such a purpose without the prior permission of the Prohibition and Excise Superintendent and every such person whether male or female before being employed shall obtain from the Prohibition and Excise Superintendent, a Nowkarnama in Form-5B, on payment of a fee of Rs.1,000/- per annum.

(2)

No nowkarnama shall be granted to the following persons:

(i)

Persons below twenty one years of age,

(ii)

Women,

(iii)

Persons suffering from any infectious or contagious diseases,

(iv)

Persons of unsound mind,

(v)

Persons who in the opinion of the Prohibition & Excise Superintendent is of a bad character,

(vi)

Persons whose Nowkarnama or licenses have previously been cancelled within the preceding three years,

(vii)

Persons convicted of any offence under the Andhra Pradesh Excise Act, (Act of 17 of 1968) or the Narcotics Drugs and Psychotropic Substances Act, 1985 (Central Act 61 of 1985) within the preceding three years,

(viii)

Persons convicted under Section 482 to 489 of the Indian Penal Code, 1860 (Central Act 45 of 1860),

(ix)

Defaulters in payment of an amount due to the State Government under the Andhra Pradesh Excise Act or the Rules made there under,

(3)

All illegal things done in connection with the transport, possession or sale of Indian Made Foreign Liquor and Foreign Liquor or known to have been done in contravention of the provisions of the Act or the Rules made there under by the servants of the licensee shall forthwith be reported to the Prohibition and Excise Superintendent, by the licensee, and such orders regarding continuance or otherwise of such servants in service as may be issued by the Prohibition & Excise Superintendent shall be carried out by licensee.

(4)

Every act of the authorized agent or servant shall be deemed to be an act of the licensee"

38.

Intimation to Prohibition and Excise officer.

- The licensee shall give notice of three clear days about the arrival of any consignment to the Prohibition & Excise officer concerned so that he may have reasonable time and opportunity to inspect the consignment before the seals or packages are opened.

If the consignment is not verified within the stipulated time mentioned in the rule the licensee can take the stocks into account and sell them.

39.

Consignments to be opened only in the presence of the Prohibition & Excise officer.

- The licensee shall open the boxes or packages of all Indian Made Foreign liquor and foreign liquors received in the licensed premises only in the presence of and after inspection by the local Prohibition & Excise officer or in his absence by any other Prohibition & Excise officer duly authorized in this behalf. If any box, packet, package or bottle is found doubtfully, carelessly or insufficiently sealed, the licensee shall produce it forthwith before the Prohibition & Excise officer for noting down such damages. The articles insecurely sealed or fastened may be returned by the licensee to the consigner with the prior approval of the Commissioner of Prohibition and Excise.

The Commissioner of Prohibition and Excise may allow in such an event, replenishment of stock without fresh payment of duty. The Commissioner of Prohibition and Excise shall be competent to relax the application of this rule in special circumstances.

40.

No breakages or losses in transit allowed.

- The Licensee is not entitled as against the Government, to any compensation or refund or reduction of duty for any loss in breakage while stocks are in transit.

41.

Licensee to maintain accounts.

- The licensee shall maintain full and day to day accounts of Indian Made Foreign liquor and Foreign Liquor received and disposed of in Form-6B, the pages of which are machine numbered serially. He shall also maintain such other returns as may be required by the Commissioner of Prohibition and Excise, and he shall, for each month, send monthly statements and returns before the 5th of the following months in the forms as may be fixed by the Commissioner to the Prohibition and Excise Superintendent and local Prohibition & Excise Inspector. All registers should be got authenticated before use by the Prohibition & Excise Superintendent.

42.

Licensee to maintain brand-wise accounts.

- The licensee shall also maintain in the Daily Brand-wise account in Form 7B, and furnish a statement before the 5th of each month to the Prohibition. & Excise Superintendent and local Prohibition. & Excise Inspector. The register shall be got authenticated by the Prohibition. & Excise Superintendent before use and the pages machine numbered serially.

43.

Entries in the daily accounts register.

(1)

The licensee shall enter in the register in Form -6B, the full particulars of transport permit of passes and documents or trip sheets, pertaining to the stocks received by him.

(2)

The moment a bottle is opened, the licensee shall make an entry in the Daily sales register and record the loose balance in each bottle at the end of the day.

44.

Statements of accounts to be furnished.

- The licensee shall furnish on requisition any statement of accounts, statistics or any other particulars to the licensing authority or to any other officer of the Prohibition & Excise Department not below the rank of a Prohibition & Excise Sub Inspector.

45.

Monetary transactions with officers Prohibited.

- Any kind of monetary transactions unconnected with the official purpose between the licensee and the personnel of the Prohibition & Excise, Police, Revenue Department and the personnel of the Andhra Pradesh Beverages Corporation Ltd / Andhra Pradesh State Beverages Corporation Ltd is strictly Prohibited.

46.

Officers authorized to inspect premises.

- Any officer not below the rank of an Prohibition & Excise Sub- Inspector may enter and inspect the licensed premises during the working hours and inspect and verify all the accounts, registers and stocks. It shall be competent for such inspecting officer to take such samples as might be necessary, or to take charge of such records and registers as might be necessary, and it shall be incumbent on the licensee to offer reasonable assistance for such inspecting officers to inspect, verify and to take samples. For any records removed from the premises, the Prohibition & Excise officer should

give a receipt or in the alternative make an entry in the inspection book in this regard.

47.

Inspection book to be maintained.

- An inspection book in Form -8B, with machine numbered pages shall be kept in the shop for the use of the inspecting officers, and the licensee shall be responsible for the safe custody of it. The inspection book shall be the property of the Government and shall be handed over to the Prohibition & Excise officer concerned on expiry of the period of license.

48.

License to be surrendered to the licensing authority on expiry.

- Every license granted under these rules, either jointly or severally to the licensee (s) named therein shall on its expiry be deemed to have been surrendered by the licensee to the licensing authority.

49.

License to be cancelled under certain circumstances.

- If any licence or permit has been obtained by misrepresentation or by any other fraudulent means, the licence or permit so obtained is liable to be cancelled and the licensee or the permit holder is also liable for prosecution.

50.

Person holding more than one licence liable jointly and severally for all licenses.

- If any licensee holds more than one licence and if any one of them is suspended or cancelled under the provisions of the Act or the rules made thereunder, the Commissioner may, for reasons to be recorded in writing order that all or any of the remaining licences or permits be cancelled.

51.

Licensee to abide by the provisions of the Act etc.

- Every holder of the license under these rules shall comply promptly with all orders or directions issued from time to time under the Act, and the rules and orders made thereunder and shall abide by all the conditions of the licence.

52.

Suspension, withdrawal or cancellation of a licence.

- A licence may be suspended, cancelled or withdrawn in accordance with the provisions of Section 31 or 32 of the Act.

53.

Stocks on cancellation or withdrawal of licence.

- If a licence is cancelled or withdrawn during the currency of the Licence period the whole stock of Indian Made Foreign Liquor and Foreign Liquor found in the shop shall be seized. The stock so seized shall be sold by the Prohibition & Excise Superintendent to any other licensee(s) and the proceeds of the sale shall after deduction of the expenses and any other sum due to the government be refunded to the licensee provided that the licence is not cancelled on account of a Criminal case.

54.

Removal of difficulties.

- If there is any doubt or dispute regarding the application or interpretation of any of these rules, the decision of the Commissioner thereon shall be final.

Form-E1

(See Rule 7 & 8)

Enrollment Form

(1)

. Name of the Applicant :

(2)

. Father's name :

(3)

. Full Residential Address :

(4)

. Age :

(5)

. Registered Mobile No. :

(6)

. Income Tax PAN No. :

(7)

. Aadhar Number :

(8)

. e-mail ID :

(9)

. Are you an existing bar license holder? Yes / No :

[Form - 1A]

(See Rule-9)

(Affix Court Fee Stamp of `Rs.5/-)

Application For Prior Clearance For Grant of Licence

(1)

. Name of the Applicant

(2)

. Full residential address Details of company or partnership firm with registration particulars.

(3)

. Details of Hotel / Restaurant etc., licence issued by competent Local authority

(4)

. Details of plinth area of the premises to be licensed and its location

(5)

. Details of any other licenses held by him.

(6)

. Date on which he is likely to commence business

(7)

. Details of Challan

I hereby declare that the particulars given above are true to the best of my knowledge and belief. If at a later stage any of the facts are found to be false the licence may be cancelled and I may be prosecuted as per the Andhra Pradesh Excise Act 1968.or the Rules thereunder.

I hereby, undertake to abide by the rules and licence conditions prescribed under per the Andhra Pradesh Excise Act 1968 .

Signature of the Applicant

Form-2A

(See Rule - 9)

(Prior Clearance for Grant of Licence)

Cr.No.

Date:...

Sri.....S/o.....R/o.....holder of trade license for the year.....issued by.....local authority / Municipality / Municipal Corporation in the name and style of M/s.....area/locality.....at D.No..... Town / City.....is granted prior clearance for grant of licence for selling by bar. The prior clearance is valid for 45 days from the date of issue.

The grant of prior clearance shall not confer any right on the applicant for grant of licence in Form-2B or 2B(P). The holder shall apply separately for grant of privilege to the Prohibition and Excise Superintendent concerned, fulfilling all the requirements under the rules. The holder shall not claim for any compensation or loss in the event of not granting licence.

Commissioner of Prohibition and Excise.

To

Sri.....

Copy to the Deputy Commissioner of Prohibition and Excise.....

Copy to the Prohibition and Excise Superintendent.....

Form- BR1 (Rule 9)

Registration Certificate

Reg. No. _____

Dated _____

(1). Name of the Applicant

:

(2). Father's Name

:

(3). Full Residential Address

:

(4). Age

:

(5). Registered Mobile No.

:

(6). Income Tax PAN

:

(7). Aadhar Number

:

Form-2B or Form-2B(P)

(8). Category of license for which registration
sought

:

(9). Nagar Panchayat Municipality/ Municipal
Corporation/Village in which the applicant intends to establish
bar

:

(10). Details of non-refundable registration
charge paid

:

a) Challan No. & Date

:

b) Name of the sub-treasury

:

c) amount

:

This certifies that the applicant has registered
with the licensing authority, duly paying the non-refundable
registration charge as required under the Rule 9 of ANDHRA
PRADESH Excise (Grant of license of selling by Bar and conditions
of license) Rules 2017 for the above said license.

Prohibition & Excise Superintendent

{|

Affix

| Form -1b

|-

| (See Rule- 9)

|-

| (Affix Court fee stamp
of Rs.2/-)

|-

| (Application for
licence)

|-

| (1). Name of the
applicant

|

Affix passport size photograph

|-

| (2). Full residential
address

|-

| (3). Details of Prior
Clearance, if any

|-

| (4). Details of
company or partnership firm or sole proprietorship.

|-

| (5). Details of trade
license to Hotel / Restaurant etc., issued by competent local
authority

|

|-

| (6). Details of
license issued under Food Safety And Standards Act, 2006

|

|-

| (7). Details of
premises to be Licensed

|

|-

| (8). Details of any
other license held by him

|

|-

| (9). Date on which he
can commence business

|

|-

| (10). Details of
payment of license fee

|

|-

| i) License fee

|

|-

| ii) Sub-Treasury Name

|

|-

| iii) Date of payment

|

|-

| I hereby declare that
the particulars given above are true to the best of my knowledge
and belief. If at a later stage any of the facts are found to be

false the licence may be cancelled and I may be prosecuted as per the Andhra Pradesh Excise Act 1968.or the Rules thereunder.

|-

| I hereby, undertake

to abide by the rules and licence conditions prescribed under per the Andhra Pradesh Excise Act 1968.

|-

| Signature of the
Applicant

|}

Form - 2b

(See Rule -4)

(Licence for the sale of Indian Made Foreign Liquor/ Foreign Liquor to be consumed on the premises)

I, _____ Prohibition and Excise Superintendent _____ in consideration of the payment of license fee of Rs._____(Rs._____ only), the receipt of which is hereby acknowledged and hereby license you _____ to sell all kinds of Indian Made Foreign Liquor and Foreign Liquor on the premises _____ bearing No._____the details of which area as follows:-

Boundaries

1. East
2. West
3. North
4. South

_____ Municipal Corporation/Municipality/Nagar Panchayat/Village within the marginally noted boundaries during the licence period commencing from the 1st July, 20____ and ending with the 30th June, 20____ subject to the following conditions and stipulations to be observed by you the said viz.,

1. No liquor shall be sold for removal from the licensed premises.
2. The licence holder may purchase or stock Indian Made Foreign Liquor and Foreign Liquor in bottles of all sizes including Ready to Drink varieties.
3. The licensee is prohibited from purifying, colouring and flavouring the liquor or making any material therewith and from blending another kind of liquor with it or to keep in his possession other than authorised liquor under this licence.
4. The Licensee is prohibited from bottling liquors.
5. The possession or sale of diluted beer by the licensee is prohibited.
6. All Indian Made Foreign Liquor and Foreign Liquor sold under this licence shall be duty paid and obtained from the wholesale depot of Government / Andhra Pradesh Beverages Corporation Limited / Andhra Pradesh State Beverages Corporation Limited.
7. The licensee shall maintain and furnish to the Prohibition and Excise Superintendent statistics showing the consumption of all kinds of liquors separately.
8. The licence shall be subject to cancellation or suspension at will by the Commissioner of Prohibition and Excise.
9. The Licensee shall not act in any manner prejudicial to the interest of the revenues of the Government.

Date: Day of _____ 20____

Prohibition and Excise Superintendent.

Form - 2B (P)

(See Rule -4)

(Licence for the sale of Beer, Wine and Ready to Drink varieties to be consumed on the premises)

I, _____ Prohibition and Excise Superintendent _____ in consideration of the payment of license fee of Rs._____(Rs._____ only), the receipt of which is hereby acknowledged and hereby licence you _____ to sell all kinds of Beer, Wine and Ready to Drink varieties on the premises _____ bearing No._____the details of which area as follows:-

Boundaries

1. East
2. West

3. North

4. South

_____ Municipal Corporation/Village within the marginally noted boundaries during the licence period commencing from the 1st July, 20____ and ending with the 30th June, 20____ subject to the following conditions and stipulations to be observed by you the said viz.,

1. No Beer, Wine and Ready to Drink shall be sold for removal from the licensed premises.
2. The licence holder may purchase or stock Beer, Wine and Ready to Drink varieties in bottles of all sizes.
3. The licensee is prohibited from purifying, colouring and flavouring the liquor or making any material therewith and from blending another kind of liquor with it or to keep in his possession other than authorized stock under this licence.
4. The Licensee is prohibited from bottling liquors.
5. The possession or sale of diluted beer by the licensee is prohibited.
6. All Beer, Wine and Ready to Drink varieties sold under this licence shall be duty paid and obtained from the wholesale depot of Government / Andhra Pradesh Beverages Corporation Limited / Andhra Pradesh State Beverages Corporation Limited.
7. The licensee shall maintain and furnish to the Prohibition and Excise Superintendent statistics showing the consumption of all kinds of liquors separately.
8. The licence shall be subject to cancellation or suspension at will by the Commissioner of Prohibition and Excise.
9. The Licensee shall not act in any manner prejudicial to the interest of the revenues of the Government.

Date: Day of ____20____

Prohibition and Excise Superintendent.

Form - 4B

(See Rule - 9)

Counterpart Agreement to sell Indian Made Foreign Liquor, Foreign Liquor/Beer, Wine and Ready to Drink varieties (As required under Section 29 of the Andhra Pradesh Excise Act, 1968)

I/ We _____ s/o _____ age _____ years have severally/ jointly obtained the License in Form _____ under the name and style of M/s _____ at premises No. _____ for the period from _____ to _____ on payment of non-refundable registration charge and Licence Fee/ Proportionate non-refundable registration charge and license fee of Rs. _____.

I/We do hereby affirm, agree and covenant with the licensing authority:

- i) That, I/We shall be severally/ jointly responsible to abide by the terms and conditions of the License as laid down in the license in Form-2B / Form-2B (P), dated _____ and the Andhra Pradesh Excise (Grant of License of selling by Bar and conditions of licence) Rules, 2017.
- ii) That, I/ We shall abide by the provisions of Andhra Pradesh Excise Act, 1968 and the Rules and Orders there under existing and also those that would be issued from time to time.
- iii) That, I/ We shall abide by all general conditions applicable to the sale of intoxicants and also the instructions issued by the Commissioner of Prohibition and Excise, in this regard from time to time.
- iv) That, I/ We shall be bound to pay the non-refundable registration charge and license fee, excise duty and security deposit or any enhanced non-refundable registration charge and license fee, excise duty and security deposit, and the like levied from time to time.
- v) That, I/ We shall be bound to pay the penalties or privilege fee levied from time to time.
- vi) That, I/ We hereby agree that the licence is liable to be cancelled on the basis of any adverse report of investigation for any lapse which amounts to contravention of any Rule or any condition of licence or any other provision of Law and also for any conviction in any criminal case at any time either in the past or in future.
- vii) If the license is surrendered in the middle of the lease period, I/ We shall not be eligible for refund of License Fee.
- viii) That, if I/ We fail to pay the non-refundable registration charge and license fee, Excise Duty, Penalties or Privilege fee etc., if any, due to the Government on time, the license is liable to be cancelled and the entire amount so due, without prejudice to any other mode of recovery, may be recovered by way of distraining my/ our movable and immovable property whatsoever I/ We possess and selling the said properties under the Andhra Pradesh Revenue Recovery Act.

This agreement is executed in favour of the licensing authority and the said authority may enforce the above terms and conditions agreed to by me/ us.

Place:

Date:

Signature of the Licensee/Licensees.

Witnesses: 1.

2.

I certify that Sri/ Sarvasri _____s/o _____R/o.H.No._____ Name of the locality, village or town _____ is known to me / identified by Sri Sarvasri _____known to me, executed the agreement and signed before me.

Signature of the Licensing Authority

Official Designation and Seal

Form - 5B

(See Rule-37)

Nowkarnama

{|

Here affix photograph, of the agent or the authorised servant

|-

| District :

|

|-

| 1. Mandal

|

|-

| 2. Village

|

|-

| 3. (i) Name of the Bar

|

|-

| (ii) Number of the licence & Date

|

|-

| 4. (i) Name of the Licensee

|

|-

| (ii) Address

|

|-

| 5. (i) Name of the Agent or the authorized servant

|

|-

| (ii) Date of Birth/Age

|

|-

| (iii) Father's name

|

|-

| (iv) Identification marks of the agent or the authorized servant

|

|-

| 6. Signature or thumb impression of the agent or
the authorized servant

|

|-

| 7. Signature or thumb impression of the licensee

|

|-

| Seal:

|

|-

| Place:

|

|-

| Date:

|

|-

|

Prohibition & Excise Superintendent,

|-

| Note:-

|

|-

| 1. The agent or the authorized servant shall sign or affix his
thumb impression before the Prohibition and Excise
Superintendent.

|-

| 2. The Prohibition and Excise Superintendent shall attest the
signature or thumb impression and also sign across the photograph
or the agent/authorized servant under his official seal in token
of its correctness.

|-

| 3. The nowkarnama shall be issued induplicate and the duplicate
retained in the office of the Prohibition and Excise
Superintendent.

|}

Form -6B

(See Rule- 41)

Daily Account Register

(Separate page should be set apart for each type of liquor with an index in the front page of the Register)

Name of the Licensee

License No. and Date

Sl.No.

Date, Month And year

Opening Stock

Receipts Issues

Issues

No. of Bottles

L/Q/P/N/ D

No. of Bottles

L/Q/P/N/D

No. of Bottles

L/Q/ P/N/ D

1
2
3
4
5
6
7
8

Balance

No. of date of T.P. In respect of receipts Shown
in col.5, 6

Signature of the Licensee

Remarks

No. of Bottles

L/Q/P/N/D

9
10
11
12
13

Form -7B

(See Rule - 42)

Daily Brand-wise Account Register.

(Separate page should be set apart for each type of liquor with an index in the front page of the Register)

Name of the Licensee

License No. and Date

Date

Item

Opening Stock

Receipts

Issues

L/Q/P/N/D

L/Q/P/N/D

L/Q/P/N/D

1
2
3
4
5

Balance

Signature of the Licensee

L/Q/P/N/D

6
7

Form - EB1

Entry Pass

_____ District

(See Rule 8)

Government of Andhra Pradesh

Prohibition and Excise Department

Gazette Serial No. ()

Date :

{|

Affix Passport Size Photograph of the

|-

|

|

|

|-

| Sri _____ S/o _____ Age _____

Residential address _____ is authorized to participate
in the selection process of the following Bar.

|-

| a) Gazette Serial No. _____

|

|

|-

| b) Nagar Panchayat /

|

|

|-

| Municipality/

|

|

|-

| Municipal

Corporation _____

|

|

|-

| Authorized signatory

|-

| _____ *

This document is system-generated and is valid only if it is
signed by authorized signatory

|}

Form - 8B

(See Rule -47)

Inspection Book

1.

) Date of Inspection,

2.

) Time of Inspection,

3.

) Name of the Officer Inspecting with his designation,

4.

) Quantity of liquors as per stock books,

5.

) Quantity found actually in stock,

6.

) Difference if any, and the reasons given by the licensee,

7.

) General conditions of the licensed premises,

8.

) Other remarks or directions, if any,

Signature of the Officer inspecting

Related AI tags, queries and research notes

Translation